

26STCV15504 26STCV15504

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-09-01

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C510%2C09%2F01%2F2026

Source SHA-256: 1aaa77d76dda37e4123ffbd47e29a458f3618fd1ea4c2cf10efca28478c84e0e

Case Number: 26STCV15504 Hearing Date: September 1, 2026 Dept: 510

Tentative

Ruling:

No.

9 – Kenneth Russell DeGraff v. American Dream Auto Project Inc., et al.

Plaintiff

Kenneth Russell DeGraff's Motion for Leave to File a First Amended Complaint

Plaintiff

Kenneth Russell DeGraff moves for leave to file a first amended complaint.

Plaintiff seeks to correct an erroneous date, provide more specificity given his receipt of phone records, add citations and grounds for Defendants' willfulness, and remove the fifth and sixth causes of action.

Code

of Civil Procedure section 473(a)(1) provides, "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." Courts exercise their discretion "liberally to permit amendment," and "[t]he policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) A motion for leave to amend will normally be granted unless (a) the party seeking to amend has delayed bringing the proposed amendment; and (b) the delay in seeking leave to amend will cause prejudice to an opposing party. (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 490.)

Defendants

filed a notice of non-opposition to the motion. The Court will permit Plaintiff to file the first amended complaint.

Disposition

Plaintiff

Kenneth Russell DeGraff's motion for leave to file a first amended complaint is granted. Plaintiff is ordered to file the proposed first-amended complaint forthwith.